

Form No: HCJD/C-121
ORDER SHEET
LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Civil Revision No. 19028 of 2026

Ghazanfar Ali, etc.
Vs.
Mst. Noor Fatima, etc.

No. of order/ proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties or counsel, where necessary
	<u>31.03.2026</u>	Rana Farhat Abbas, Advocate for the petitioner.

The necessary facts giving rise to the instant civil revision are that respondent No.1-plaintiff instituted a suit for declaration alongwith permanent and mandatory injunction alongwith consequential relief against the petitioners and respondents No.2 to 4 by maintaining that she is owner of land measuring 49 Kanals and 6 Marlas situated in Revenue Estate 266/JB, Tehsil & District Jhang and the petitioners and respondents No.2 & 3, in connivance with respondent No.4 and revenue officials, got attested mutation No.1114 dated 28.11.2006 in their favour, which, according to respondent No.1-plaintiff, was effected without any valid offer or acceptance, without delivery of possession and without due compliance of legal formalities before the revenue authorities, particularly when she did not appear before any revenue authorities for the said transaction.

The petitioners and respondents No.2 to 4 contested the suit by filing written statements and controverted the averments of the plaint. Learned trial Court framed issues. Respondent No.1-plaintiff adduced her oral as well as documentary evidence, whereas the petitioners and respondents No.2 to 4 despite availing sufficient opportunities failed to produce the evidence, therefore, their right to produce

evidence was closed. Subsequently, they also absented themselves from the proceedings, thus were proceeded against *ex parte*. Learned trial Court *vide* impugned judgment and decree dated 29.10.2024 decreed the suit of respondent No.1-plaintiff; against which the petitioners preferred an appeal alongwith an application under section 5 of the Limitation Act, 1908, but the same were dismissed *vide* impugned judgment & decree dated 13.02.2026 passed by the learned Addl. District Judge, Jhang; hence, this revision petition.

2. Heard.

3. Limitation is not just a technical rule; it is a substantive law. Any party seeking to challenge an order, judgment, or decree after the prescribed period of limitation must satisfy the requirements of Section 5 of the Limitation Act, 1908. They must provide a sufficient and reasonable explanation for the delay to obtain condonation¹. Without such justification, the challenge cannot be allowed². In the case in hand, the petitioner has failed to offer a satisfactory explanation for the delay in filing the appeal before the learned appellate court. The impugned judgment and decree were passed by the learned trial court on 29.10.2024, while the appeal was filed on 25.02.2025. The explanation offered by the petitioner in the application for condonation of delay lacks plausibility and does not constitute sufficient cause within the meaning of Section 5 of the Limitation Act, 1908. In this view of the matter, it is observed that the learned appellate Court while construing law on the subject has rightly adjudicated upon the matter in hand and has rightly dismissed the appeal being barred by limitation.

¹ Secretary to Government of Khyber Pakhtunkhwa Communication and Works Department, Peshawar and others v. Messrs PARCON ASSOCIATE GOVERNMENT CONTRACTORS through Muhammad Haroon and others sss(PLD 2025 SC 371)

² Dr. Muhammad Javaid Shafi v. Syed Rashid Arshad and others (PLD 2015 Supreme Court 212) & Imtiaz Ali v. Atta Muhamamd and another (PLD 2008 SC 462)

4. Moreover, the beneficiary(s) of the impugned transaction(s) involving the gift or transfer of immovable property carries a heavy burden to establish the validity of the said transaction. This required the production of concrete and convincing evidence demonstrating the essential ingredients of a valid gift, namely, the offer, acceptance, and delivery of possession³. A plain reading of the written statement filed by petitioners-defendants reveals that no specific date, time, or place of the transaction has been pleaded, nor have the names of the persons in whose presence the deceased purportedly executed the gift or alienation been disclosed in the written statement. It is settled law that such an omission in pleadings is fatal⁴. Thus, the learned trial Court has rightly adjudicated upon the matter.

5. Even if, for the sake of argument, the petitioners' stance is accepted that the mutation was sanctioned with the free will of the plaintiff the legal obligation still rested upon the beneficiaries to prove the validity of the alleged gift. The Section 167 of Mohammdan Law reads as under:-

“167. Revocation of gift.--(1) A gift may be revoked by the donor at any time before delivery of possession. The reason is that before delivery there is no complete gift at all.

(2) Subject to the provisions of subsection (4), a gift may be revoked even after delivery of possession except in the following cases—

(a) when the gift is made by a husband to his wife or by a wife to her husband;

(b) when the donee is related to the donor within the prohibited degrees;

(c) when the donee is dead;

(d) when the thing given has passed out of the donee's possession by sale, gift or otherwise;

(e) when the thing given is lost or destroyed;

(f) when the thing given has increased in value, whatever be the cause of the increase;

³ Para 149 of Muhammadan Law by D.F. Mulla.

⁴ MUHAMMAD SARWAR v. MUMTAZ BIBI and others (2020 SCMR 276).

(g) when the thing given is so changed that it cannot be identified, as when wheat is converted into flour by grinding,

(h) when the donor has received something in exchange (iwaz) for the gift.

(3) A gift may be revoked by the donor, but not by his heirs after his death. It is the donor's law that will apply to a revocation and not that of the donee."

(4) Once possession is delivered, nothing short of a decree of the Court is sufficient to revoke the gift. Neither a declaration of revocation by the donor or even the institution of a suit for resuming the gift is sufficient to revoke the gift. Until a decree is passed, the donee is entitled to use and dispose of the subject of gift.

It is manifestly clear from the above that donor can revoke the gift at any time before delivery of possession and if the possession is delivered then the donor can only revoke the gift through a decree of the court⁵.

6. Upon perusal of the judgment and decree passed by the learned trial Court, there appears no illegality and irregularity in the same warranting interference by this Court in exercise of revisional jurisdiction under section 115, Code of Civil Procedure, 1908. Resultantly, the revision petition in hand having no merits stands dismissed **in limine**.

(Ch. Sultan Mahmood)
Judge

Approved for reporting

Judge

*Shafqat/**

⁵ "RIAZ ULLAH KHAN versus ASGHAR ALI and 2 others"(2004 SCMR 1701), "Mst. KANEEZ BIBI and another versus SHER MUHAMMAD and 2 others"(PLD 1991 Supreme Court 466) & Mst. NOOR BEGUM and 6 others versus MUHAMMAD AKRAM and 17 others"(2013 MLD 1323)